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Why Governor Newsom Must Veto AB 101, For Good

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The LA Times has appropriately urged Governor Gavin Newsom to veto AB 101, the ethnic studies graduation requirement bill, on the grounds that despite the bill's "supposed guardrails ... there is too much leeway for unapproved curriculum to be taught." While the LA Times editorial board is 100 percent correct to oppose AB 101 on these grounds, they underestimate the danger it poses to California kids and naively believe "a few relatively small but key changes" will make it ready for the Governor's signature next year.

The editorial notes that two previous iterations of the ethnic studies bill failed to get the Governor's signature because the state-approved Ethnic Studies Model Curriculum (ESMC) that the bill recommended be used in the required classes had not yet been finalized, and extant drafts of the curriculum were highly objectionable. The first draft in particular, which contained overtly antisemitic lessons, was met with widespread condemnation and outrage from tens of thousands of members of the Jewish community, the Legislative Jewish Caucus and Governor Newsom, who called the draft "offensive in so many ways, particularly to the Jewish community," and vowed the draft "would never see the light of day."

A final, far less objectionable draft of the ESMC was approved by the State Board of Education in March, just in time for the legislature's consideration of AB 101. However, as the editorial also points out, while state education officials were busy revising the ESMC, the authors of the roundly rejected first draft were busy creating a new organization, Liberated Ethnic Studies Model Curriculum Institute (LESMC), to peddle as an alternative to the state's model curriculum an even more explicitly anti-Jewish and anti-Zionist version of the first draft. According to the LESMC's website, their alternative curriculum includes lessons that use classic antisemitic tropes of Jewish wealth and power to vilify pro-Israel Jews and Jewish organizations, smear Israel with false charges of "settler colonialism" and "apartheid," promote the work of anti-Zionist organizations that call for dismantling the Jewish state, and offer advice on "how to start your own BDS campaigns."

The Editorial Board is rightly concerned that guardrails intended to ensure that school districts will adopt and use the state-approved model curriculum will do no good because they are only advisory, not compulsory. By law, the state cannot mandate what curriculum individual school districts adopt, and nothing in the current bill will prevent districts from adopting the rejected first draft of the ESMC, or its even more extreme "Liberated" cousin. The editorial's solution? A re-do of the bill with yet another guardrail—requiring districts that opt to use a curriculum other than the state-approved ESMC to submit it to the California Department of Education for review and approval.

Unfortunately, this guardrail, too, would be as useless as the bill's current ones in preventing antisemitic curricula from entering California's ethnic studies classrooms. To understand why, consider the case of San Diego Unified School District, the second largest district in the state.

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Earlier this year, SDUSD's Superintendent and School Board members signed a petition launched by the ESMC first-drafters, urging state education officials to adopt their rejected curriculum rather than the "watered-down" final draft. The petition was also signed by the SDUSD Ethnic Studies Advisory Committee (ESAC), which oversees the implementation of Ethnic Studies in the district's TK-12 classrooms, as well as by all three Lead Ethnic Studies Teachers hired by the SDUSD school board last year.

ESAC chair Tricia Gallagher-Guersten describes herself as an "activist scholar" and "Lead Author for the Liberated Ethnic Studies Model Curriculum Coalition." And the committee's Vice Chair, Guillermo Gomez, who also serves as

one of the district's Lead Ethnic Studies Teachers, is a member of the Liberated group's "Leadership Team" and had previously worked for the California Department of Education as a lead writer of the first draft of the model curriculum.

In June, following a flare-up of hostilities between Israel and Hamas, an Ethnic Studies newsletter sent to all SDUSD ethnic studies teachers contained a section entitled "Palestinian-Israeli Conflict through an Ethnic Studies Lens" that offered "guiding questions and a list of resources" to help students "silence ideological critics and support students' critical thinking" about the conflict. While the "guiding" questions provided in the newsletter—Who has the right to self-determination? What gives someone the right to exercise social power over another person? What constitutes apartheid? What constitutes genocide?—give the impression that students will be encouraged to come to their own conclusions after careful consideration of all sides of the complex conflict, the resources linked to the newsletter suggest otherwise. Heavily weighted with anti-Zionist sources that are not simply critical of Israel but also challenge Israel's very existence and demonize its supporters, the resource list presents students with a set of foregone, highly politicized conclusions that leave no doubt about how the "guiding" questions will be answered in SDUSD ethnic studies classrooms.

Given the district's support for the first draft of the state-mandated model curriculum and the ties of its Ethnic Studies leadership to the LESMC and that group's even more overtly anti-Jewish and anti-Zionist "Liberated" curriculum, it is clear that no legislative "guardrails" will change the antisemitic course of ethnic studies instruction in San Diego classrooms.

And SDUSD is not the only district unlikely to feel compelled to adopt the state-mandated model curriculum or deterred from adopting the "Liberated" one because of AB 101's current or proposed "guardrails." Twenty school districts in the state signed the petition in support of the rejected first draft of the ESMC, and several of them have either committed to using the "Liberated" curriculum or the consulting services of LESMC members, including Hayward, Santa Cruz, Jefferson and Salinas.

Nor is support for these antisemitic curricula limited to individual school districts. The two largest teachers' unions in the state—the California Teachers Association and United Teachers Los Angeles—both signed the petition in support of the rejected first draft ESMC, and so, too, did ethnic studies departments on every Cal State campus and most University of California campuses. The CTA and UTLA have also enthusiastically supported the work of the LESMC and their "Liberated" curriculum, as have ethnic studies faculty on CSU and UC campuses.

In light of the support from teachers' unions and the higher education community as well as the LESMC's growing success in creating pathways for teacher training and professional development using their "Liberated" curriculum, if AB 101 becomes law most of the more than 1,000 school districts in the state are likely to adopt one of these antisemitic curricula—undeterred by the bill's "guardrails."

Last month, in an Ethnic Studies Briefing hosted by three large California-based Jewish communal organizations soon after the state legislature had passed AB 101, Assemblymember Jesse Gabriel, chair of the Legislative Jewish Caucus, attempted to quell the fears of several hundred participants who were deeply concerned about the bill's antisemitic impact for Jewish students. He explained that the Jewish caucus had amended to the bill seven different "guardrails" to ensure that antisemitism would be kept out of ethnic studies classrooms.

The fact that no less than seven "guardrails" were deemed necessary for preventing AB 101 from facilitating the widespread promotion of antisemitism is itself a stunning indictment of the bill and the dangers it poses for Jewish students and the Jewish community.

Rather than quell participants' fears, however, Gabriel's remarks raised new ones. The fact that no less than seven "guardrails" were deemed necessary for preventing AB 101 from facilitating the widespread promotion of antisemitism is itself a stunning indictment of the bill and the dangers it poses for Jewish students and the Jewish community. Even more frightening is the fact that these "guardrails" will do nothing to stop the torrent of anti-Jewish and anti-Zionist sentiment this bill will unleash if the Governor signs it into law.

The LA Times Editorial Board believes AB 101 is flawed but can be rehabilitated. It cannot. Governor Newsom must veto this bill, for good.

Tammi Rossman-Benjamin is the director of AMCHA Initiative, a nonpartisan, nonprofit organization dedicated to combating anti-Semitism at colleges and universities in the United States. She was a faculty member at the University of California for 20 years.

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